

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1633

 By: Stanley, Woods, Hamilton,
 and Jett of the Senate

6 and

7 Maynard of the House

8
9
10 An Act relating to higher education; amending 70 O.S.
11 2021, Section 3242, which relates to resident tuition
12 eligibility for students with certain status;
13 removing language providing eligibility for students
14 who cannot present certain documentation; removing
15 language regarding eligibility for certain
16 scholarships or financial aid for certain students;
17 removing outdated language; amending 70 O.S. 2021,
18 Section 3242.2, which relates to higher education
19 benefits for certain students; removing exception to
20 prohibition for certain students; removing outdated
21 language; updating statutory language; providing for
22 promulgation of rules; and declaring an emergency.

23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

24 SECTION 1. AMENDATORY 70 O.S. 2021, Section 3242, is
amended to read as follows:

 Section 3242. ~~A.~~ The Oklahoma State Regents for Higher
Education may adopt a policy which allows a student to enroll in an

1 institution within The Oklahoma State System of Higher Education and
2 allows a student to be eligible for resident tuition if the student:

3 1. Graduated from a public or private high school in this
4 state; and

5 2. Resided in this state with a parent or legal guardian while
6 attending classes at a public or private high school in this state
7 for at least two (2) years prior to graduation.

8 ~~B. To be eligible for the provisions of subsection A of this~~
9 ~~section, an eligible student shall:~~

10 ~~1. Satisfy admission standards as determined by the Oklahoma~~
11 ~~State Regents for Higher Education for the appropriate type of~~
12 ~~institution and have secured admission to, and enrolled in, an~~
13 ~~institution within The Oklahoma State System of Higher Education;~~
14 ~~and~~

15 ~~2. If the student cannot present to the institution valid~~
16 ~~documentation of United States nationality or an immigration status~~
17 ~~permitting study at a postsecondary institution:~~

18 a. ~~provide to the institution a copy of a true and~~
19 ~~correct application or petition filed with the United~~
20 ~~States Citizenship and Immigration Services to~~
21 ~~legalize the student's immigration status, or~~

22 b. ~~file an affidavit with the institution stating that~~
23 ~~the student will file an application to legalize his~~
24 ~~or her immigration status at the earliest opportunity~~

1 ~~the student is eligible to do so, but in no case later~~
2 ~~than:~~

3 ~~(1) one (1) year after the date on which the student~~
4 ~~enrolls for study at the institution, or~~

5 ~~(2) if there is no formal process to permit children~~
6 ~~of parents without lawful immigration status to~~
7 ~~apply for lawful status without risk of~~
8 ~~deportation, one (1) year after the date the~~
9 ~~United States Citizenship and Immigration~~
10 ~~Services provide such a formal process, and~~

11 ~~c. if the student files an affidavit pursuant to~~
12 ~~subparagraph b of this paragraph, present to the~~
13 ~~institution a copy of a true and correct application~~
14 ~~or petition filed with the United States Citizenship~~
15 ~~and Immigration Services no later than:~~

16 ~~(1) one (1) year after the date on which the student~~
17 ~~enrolls for study at the institution, or~~

18 ~~(2) if there is no formal process to permit children~~
19 ~~of parents without lawful immigration status to~~
20 ~~apply for lawful status without risk of~~
21 ~~deportation, one (1) year after the date the~~
22 ~~United States Citizenship and Immigration~~
23 ~~Services provide such a formal process, which~~
24

1 ~~copy shall be maintained in the institution's~~
2 ~~records for that student.~~

3 ~~C. Any student who completes the required criteria prescribed~~
4 ~~in subsection A of this section, paragraph 1 of subsection B of this~~
5 ~~section, and subparagraph a of paragraph 2 of subsection B of this~~
6 ~~section shall not be disqualified on the basis of the student's~~
7 ~~immigration status from any scholarships or financial aid provided~~
8 ~~by this state.~~

9 ~~D. The provisions of this section shall not impose any~~
10 ~~additional conditions to maintain resident tuition status at a~~
11 ~~postsecondary educational institution within The Oklahoma State~~
12 ~~System of Higher Education on a student who was enrolled in a degree~~
13 ~~program and first received such resident tuition status at that~~
14 ~~institution during the 2006-2007 school year or any prior year.~~

15 SECTION 2. AMENDATORY 70 O.S. 2021, Section 3242.2, is
16 amended to read as follows:

17 Section 3242.2. A. ~~Except as otherwise provided in Section~~
18 ~~3242 of Title 70 of the Oklahoma Statutes, an~~ An individual who is
19 not lawfully present in the United States shall not be eligible on
20 the basis of residence within ~~the~~ this state for:

21 1. Any postsecondary education benefit, including, but not
22 limited to, scholarships or financial aid; or

23 2. Resident tuition.
24

1 B. ~~The provisions of subsection A of this section shall not~~
2 ~~apply to a student enrolled in a degree program at a postsecondary~~
3 ~~educational institution within The Oklahoma State System of Higher~~
4 ~~Education during the 2006-2007 school year or any prior year who~~
5 ~~received a resident tuition benefit pursuant to Section 3242 of~~
6 ~~Title 70 of the Oklahoma Statutes at that institution~~ The Oklahoma
7 State Regents for Higher Education may promulgate rules to implement
8 the provisions of this section.

9 SECTION 3. It being immediately necessary for the preservation
10 of the public peace, health, or safety, an emergency is hereby
11 declared to exist, by reason whereof this act shall take effect and
12 be in full force from and after its passage and approval.

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14 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION OVERSIGHT, dated
15 04/13/2026 - DO PASS.
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